

Torture Related Compensation Act, 1996

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2010) 2066.10.7

Act No. 14 of the year 2043 (1986)

An Act Made to Provide for Compensation to a Person Tortured While in Detention

Preamble: Whereas it is desirable to make provision for compensation for physical or mental torture inflicted upon, or cruel, inhuman or degrading treatment meted out to, a person who is in detention in the course of investigation, inquiry or trial or in any other manner,

Now, therefore, Parliament has enacted this Act in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be cited as the "Torture Compensation Act, 2043 (1986)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, ?

(a) "Torture" means physical or mental torture inflicted upon a person who is in detention in the course of investigation, inquiry or trial or in any other manner, and the term also includes cruel, inhuman or degrading treatment meted out to him or her.

(b) "Victim" means a person who suffers torture. 3. Torture not to be inflicted: (1) No person who is in detention in the course of investigation, inquiry or trial or in any other manner shall be subjected to torture. Explanation: For the purposes of this sub-section, the term "detention" also includes the condition of being in custody pursuant to the prevailing law.

(2) While keeping a person in detention and while releasing him or her, to the extent possible, the physical condition of such person shall be examined by a medical practitioner in government service, and where such a medical practitioner is not available, by the concerned official himself or herself, and a record thereof shall be maintained. Explanation: For the purposes of this sub-section, "medical practitioner" means a doctor, Kaviraj, Health Assistant, Auxiliary Health Worker (A.H.W.) or Vaidya in government service.

(3) One copy of the report concerning the examination of physical or mental condition pursuant to sub-section (2) shall be sent to the concerned District Court. 4. Compensation to be provided: If it is determined that an

employee of the Government of Nepal has subjected any person to torture, the victim shall be provided compensation in accordance with this Act. 5.

Complaint may be filed: (1) A victim may file a complaint before the District Court of the district where he or she was detained, claiming compensation, within thirty-five days from the date of torture or from the date of being released from detention. (2) Notwithstanding anything contained in sub-section (1), if the victim has died or, for any other reason, the victim is unable to file a complaint himself or herself, stating the reason thereof, any adult member of his or her family or his or her legal practitioner may file a complaint pursuant to sub-section (1). (3) If it is suspected that a person in detention has been subjected to torture, any adult member of his or her family or his or her legal practitioner may submit an application to the concerned District Court. Upon receipt of such an application, the Court may, within three days, order a physical or mental examination of the person in detention. If treatment is required during such examination, treatment shall be provided on behalf of the Government of Nepal. (4) A complaint filed pursuant to sub-section (1) or (2) shall, to the extent possible, include the following particulars: ? (a) The reason for detention and the period spent in detention. (b) Details of the torture inflicted while in detention. (c) Details of the injury caused as a result of the torture. (d) The amount of compensation claimed. (e) Any other particulars that may assist in proving the claim. 6. Proceedings on complaint and compensation: (1) With respect to a complaint filed pursuant to Section 5, the District Court shall, adopting the procedure under the Summary Procedure Act, 2028 (1971), conduct proceedings, and if it determines that the particulars of such complaint are true, it may render a decision to have the victim paid compensation of up to one hundred thousand rupees from the Government of Nepal. (2) If, while conducting proceedings pursuant to sub-section (1), it is determined that the complaint was filed with mala fide intent, the District Court may impose a fine of up to five thousand rupees on the person filing such complaint. 7. Action against person involved in act of torture: If torture is determined to have been inflicted under this Act, the District Court shall order the concerned body to take departmental action against such government employee who inflicted the torture, in accordance with the prevailing law. 8.

Determination of compensation amount: For the purposes of sub-section (1) of Section 6, while determining the amount of compensation, regard shall be had to the following matters: ? (a) The physical or mental pain or suffering caused to the victim and the severity thereof. (b) The loss of the victim's earning capacity due to the physical or mental injury. (c) In case of physical or mental injury of an incurable nature, the age of the victim and his or her family responsibilities. (d) In case of injury of a curable nature, the estimated cost of treatment. (e) In case of the victim's death due to torture, the number of members of the victim's family dependent on his or her income and the minimum expenses necessary for their livelihood. (f) Such of the matters claimed by the victim as appear reasonable and appropriate. 9. Execution of decision: (1) After a final decision has been made regarding the payment of compensation to the victim, within one year from the date of receipt of notice of such decision, the victim, or, if the victim has died, his or her closest heir, shall submit an application, together with a copy of the decision of the District Court regarding compensation, to the Chief District Officer of the district where the victim was detained, in order to receive the compensation amount. (2) Within thirty-five days from the date of receipt of the application pursuant to sub-section (1), the Chief District Officer shall pay the compensation amount to the applicant. (3) If the application is not submitted within the period pursuant to sub-section (1), the compensation amount shall not be received. 10. Defense by government attorney may be provided: With respect to a complaint filed pursuant to Section 5, if the head of the concerned office so requests, a government attorney may appear in court and defend on behalf of such employee. 11. Not deemed to be torture: Notwithstanding anything contained elsewhere in this Act, for the purposes of this Act, the ordinary suffering naturally arising from being in detention under the prevailing law shall not be deemed to be torture. 12.